

(1989) 217 Cal.App.3d 200, 209 fn. 4 citing *Corkland v. Boscoe* (1984) 156 Cal.App.3d 989, 994.) The power to make such factual determinations does not extend “to whether one party had breached the terms of the agreement.” (*Ibid.*) “Judgment may be entered under section 664.6 whether the parties are complying with the terms of the agreement or whether they are not.” (*Ibid.*) Disputes regarding whether a party breached the settlement agreement “are not relevant to the entry of judgment pursuant to section 664.6.” (*Machado v. Myers* (2019) 39 Cal.App.5th 779, 796.)

In other words, under a 664.6 motion the Court is limited to determining whether a valid settlement agreement was entered into and, if so, entering a judgment that pursuant to the terms of the settlement. (*Hines*, supra, 167 Cal.App.4th at 1182.) Not only can it not determine if one party is a ‘prevailing party,’ but it cannot award the penalties sought pursuant to a motion under section 664.6.

“Under section 664.6, the [parties are] entitled to judgment ‘pursuant to the terms of the settlement’ [cite], **and nothing more.**” (*Machado*, supra, 39 Cal.App.5th at 792 emphasis added.) The Court does not, and cannot, make substantive determinations as to whether any party thereto has breached that agreement. (See e.g. *Viejo Bancorp, Inc.*, supra, 217 Cal.App.2d at 209 fn. 4.)

While the Court agrees that the statutory penalties outlined above are available, the awarding of the full amount will need to be decided at a later date. The Court strongly urges FCA to work with Plaintiff’s counsel to resolve this matter promptly to avoid additional penalties and fees to which Plaintiff may be entitled.

Conclusion

The Court **grants** Plaintiff’s motion to enter judgment according to the terms of the Settlement Agreement. Plaintiff shall submit the proposed form of judgment.

15. 9:00 AM CASE NUMBER: C25-02014
CASE NAME: DAVID VILLA VS. FUEGO BAR AND MEXICAN GRILL, LLC,
***HEARING ON MOTION IN RE: LEAVE TO FILE 2ND AMENDED COMPLAINT**
FILED BY: VILLA, DAVID TORO
TENTATIVE RULING:

Plaintiff’s motion for leave to file a second amended complaint is unopposed, and it is **granted**. This should have been handled by stipulation.

16. 9:00 AM CASE NUMBER: MSC21-02445
CASE NAME: NIST VS FARRELL
HEARING IN RE: FOR ORDER TO SHOW CAUSE RE: CONTEMPT FOR SHANNA FARRELL'S FAILURE TO PAY COURT-ORDERED SANCTIONS
FILED BY:
TENTATIVE RULING:

The ex parte application for a contempt order is **denied**. Neither contempt nor criminal proceedings are an appropriate remedy for a failure to pay money. Indeed, granting the motion would result only in an order to pay more money. Moreover, other than pointing out that the responding party